

ESTIMATE

EDG Patio & Shade
1802 Holian Drive
Spring Grove, IL 60081

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www.edgfurniture.com



Bill to
Muellner Construction, Inc.
42W121 Keslinger Rd.
La Fox, IL 60147

Ship to
Muellner Construction, Inc.
Lot #2 deer Pond Dr.
St. Charles, IL 60175

Estimate details

Estimate no.: 1343
Estimate date: 07/10/2025

#	Date	Product or service	SKU	Description	Qty	Rate	Amount
1.		Azenco	Azenco	R-BLADE MOTORIZED LOUVERED PERGOLA 25'5 1/2" X 15' 5 1/2" X 120" FRAME: TEXTURED GREY FABRIC: TEXTURED GREY	1	\$53,211.77	\$53,211.77
2.		Azenco	Azenco	RGBW LED STRIP LIGHTS	1	\$9,071.00	\$9,071.00
3.		Bond Bridge Pro		Bond Bridge Pro with POE/Smart Home	1	\$1,020.00	\$1,020.00
4.		Miscellaneous Items		MISCELLANEOUS FASTENERS/COMPONENTS	1	\$1,500.00	\$1,500.00
5.		INSTALLATION	install	INSTALLATION	1	\$10,200.00	\$10,200.00
6.		SHIPPING		SHIPPING	1	\$1,500.00	\$1,500.00
						Subtotal	\$76,502.77
						Sales tax	\$5,222.48
						Total	\$81,725.25

Accepted date

Accepted by

Signed by:
Sherri Muellner 7/21/2025
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CONTRACT

1. **PAYMENT TERMS:** Progress payments are due on this contract as follows. All payments must clear the accounts prior to being considered paid.:
 - **Order Confirmation Fee:** The Buyer will pay 50% of the Purchase Price to the Seller as Order Confirmation Fee (OCF) for production release. This allows Seller to order materials and allocate production fabrication resources. Buyer may not cancel the described project or receive a refund of any amounts paid.
 - **Shipment Confirmation Fee:** Buyer to pay the Seller 30% of the purchase price once the installation begins.
 - **Substantial Completion Fee:** The balance of 20% of the Total Purchase Price will be paid by the Buyer to the Seller upon Substantial Completion of Installation. Substantial completion means that the Project is functional for its designated purpose. A Punch List will be created for all outstanding items that do not meet with approval of Seller and/or Buyer. If an item is back ordered or for some reason there will be a week or more delay to complete some detail, then an appropriate amount may be withheld from the final payment until completion of that item.
 - **Final Payment Terms:** EDG Patio & Shade and client must create an agreed upon punch list of items to be finished prior to final payment. Once list is complete, the client must pay the final sum due. Any amount unpaid will accrue interest at 2.5% monthly. Warranty does not begin until project is paid in full, including any accrued interest.
2. **AMENDMENTS, ADDITIONS, MODIFICATIONS:** EDG Patio & Shade shall provide Buyer(s) with copies of all agreements, amendments, and additions between it and Buyer(s) including specifications and, when construction is involved, both plans and specifications. All changes in this Agreement shall be in writing, dated, and signed or initialed by all parties to this Agreement. Oral modifications to this Agreement are not enforceable. Any oral statements shall not be relied upon by Buyer(s) and shall not become part of this Contract.
3. **CHANGE ORDERS:** During construction, changes in the work increasing or decreasing the scope, price, or time for completion of the Project shall be made only by a written document signed by Buyer(s) and EDG Patio & Shade The price adjustment for such changed work shall be determined in advance if possible, if not, it shall be the cost of labor and materials plus 25% for overhead and fee. Payment for the changed work shall be made before commencement of the changed work.
4. **UNFORESEEN CONDITIONS:** If conditions are encountered at the building site which are (A) subsurface or otherwise concealed physical conditions which differ materially from those indicated in the plans, specifications or other attached documents describing the work or (B) unknown physical conditions or an unusual nature which differ materially from those ordinarily found to exist and generally recognized as inherent in construction activities of the character provided for in the plans, specification or other documents describing the work, then EDG Patio & Shade shall notify Buyer(s) of such conditions and of the

changes to the price, scope or time for completion or shall direct that the work impacted by the changed or unforeseen conditions be abandoned.

5. **FORCE MAJEURE:** The Seller shall not be liable for any delay and/or non-delivery directly or indirectly resulting from and/or contributed to by any foreign or domestic embargo, seizure, act of God, insurrection, war and/or continuance of war, or the adoption or enactment of any law, ordinance, regulation, ruling or order directly or indirectly interfering with or rendering more burdensome the production or delivery here under, lack of the usual means of transportation, delay caused in transit, fire, flood, explosion, strike, or other accidents or contingencies beyond the Seller's control whether occurring in the Seller's or its suppliers plants or elsewhere, affecting transportation or production of the Products or any ingredients used in or in connection with their production. The Seller reserves the right to terminate this Order should fulfillment in whole or in part be delayed or rendered impossible by any of the foregoing causes. In the event of such termination, the Seller's liability and obligations under or arising out of this Order shall cease except with respect to any Products shipped prior to such termination and the Buyer shall remain liable to accept and pay for Products so shipped.
6. **TIME FOR COMPLETION:** The forecasted completion date for this project is: approx 12 weeks from release of project. It is a good faith estimate and is based on uninterrupted access to the Project during normal working hours. The actual completion time is contingent upon access to the Project, delivery from manufacturer, labor strikes, material shortages, accidents, weather, Acts of God, changes caused by a body of government and the like. EDG Patio & Shade shall not be liable for any damages suffered by Buyer(s) as a result of any delay occasioned by these contingencies.
7. **Buyer(s)'s COVENANT:** Buyer(s), by executing this Contract, indicates conclusively that all writings to this Contract are definite in their terms and sufficient to express the intent of the parties with regard to the transaction, the type and amount of work to be done and the type and quality of the materials to be used. Buyer(s) further covenants that they have title to the Project property and that all persons who are owners of the Project property are listed as "Buyer(s)s" and have signed, or will sign, this Contract.
8. **ALLOWANCES:** If indicated on Page #1, all allowances will be reconciled against actual costs when completed. The final payment will be adjusted accordingly based on final reconciliation. Final amount for specified work will be billed as time & material plus 25% mark-up for administration.
9. **LIMITED WARRANTY:** EDG Patio & Shade warrants against defects as per the Manufacturer's Warranty. EDG Patio & Shade sole liability pursuant to this warranty shall be the cost of the labor and materials to repair or replace, at the EDG Patio & Shade option, any defective work for up to one year after the project completion. All material is guaranteed to be as specified, or equal to materials specified, and the described work will be performed in accordance with the drawings and/or specifications to be provided by EDG Patio & Shade
10. **GOVERNING LAW, WAIVER, BINDING EFFECT AND SEVERABILITY:** This Agreement shall be governed by the laws of the State of Illinois. This Agreement shall be binding upon and inure to the benefit of the parties and their respective heirs, personal representatives, successors, and assigns. If any provision shall be construed to be illegal or invalid, it shall not affect the legality or validity of any of the other provisions of

this Agreement, and it shall be enforced to the fullest extent permitted. The consent or approval by EDG Patio & Shade of any act by Buyer(s) requiring EDG Patio & Shade consent or approval shall not be construed to waive or render necessary the requirement for EDG Patio & Shade consent or approval of any subsequent similar act by Buyer(s). No provision of this Agreement shall be deemed to have been waived unless such waiver shall be in writing signed by the party to be charged.

11. **RESPONSIBILITIES OF BUYER(S):** It is the responsibility of the Buyer(s) to ensure that the site at which the system will be installed is prepared to project specifications and in accordance with local building codes and permits where applicable. The application process and all costs associated with obtaining permits will be the responsibility of the Buyer(s) or Buyer(s) Agent.
12. **TAXES:** Unless otherwise specified above, the Buyer will be responsible for paying all applicable local, taxes, fees or charges in connection with its purchase of the Products. The Seller will not add any applicable taxes to Buyers Purchase Price. Should any government or governmental body, board or agency impose or increase any applicable sales, excise or other taxes, duties, imposts, fees or charges beyond those in effect at the date of this Order, the Seller reserves the right to increase the Purchase Price by an amount sufficient to cover such additional taxes, duties, imposts, fees or charges that are applicable.
13. **MISCELLANEOUS:** It is understood that the Installation Crew on the job site will have reasonable use of the Buyer(s) utilities (ie... water, electric, etc...) Buyer(s) shall be responsible for obtaining any and all permits and inspections necessary to comply with local building codes. This can also be accomplished by Buyer's Agent.
14. **IMAGERY:** The Buyer consents to photographs and videos being taken of their project for advertising, promotional, and marketing purposes.

This contract is submitted by EDG Patio & Shade to on 07/21/2025.

EDG Patio & Shade authorized signatory

Printed Name Jacob Everly

Signature

DocuSigned by:

Jacob Everly

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 7/21/2025

authorized signatory

Printed Name Sherri Muellner

Signature

Signed by:

Sherri Muellner

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